

Docket No. 2015-8

Section 1201 Study

**Additional Comments of the Software and Information Industry
Association**

November 17, 2016

The Software and Information Industry Association (SIIA) appreciates the opportunity to respond to the Copyright Office's additional request for comments.¹ The final round of submissions received by the Copyright Office reflects the themes that have been developed previously, and we rest largely on those prior submissions. We have only a limited comment on the suggested broadening of the security testing provisions.

SIIA supports responsible security testing, and agrees with the security firms' characterizations that many security researchers (indeed, most) are not looking to infringe copyright "but rather seek to evaluate and test software for flaws that could cause harm to individuals and businesses."² Our members also support the use of strong encryption to protect national security, trade secrets, personal privacy and financial information (among other interests). They also support the protection of copyrights from infringement via the existing anti-circumvention provisions of the DMCA.

These positions balance a variety of important public interests: the interest in developing new and innovative technologies and improving security on the one hand, and the protection of intellectual property on the other. And they deal with an intractable problem: that the same tools that can be used to research security and engage in reverse-engineering for interoperability are those that can be used to engage in wholesale infringement. For example, many of our members have employed a software-as-a-service business model. Not all of that software, however, is in the cloud. In several instances, the user client retains the overwhelming amount of code—the access control is used

¹ 81 Fed. Reg. 66296.

² Joint Additional Comments of Rapid7, Bugcrowd, HackerOne, and Luta Security, at 2.

in communication with a host server to authenticate and enable the use of the software. Circumvention of those controls enables piracy, and thus the testing necessary to improve interoperability and network security must occur in a context-sensitive way that balances these competing interests.

Section 1201(j) provides that balance by creating an exemption to section 1201(a)(1)(A), as well as a limited exception to (a)(2). The applicability of the exemption depends on the consideration of two factors, which the security firms contend are too narrow.³ The statute requires that the factors in section “shall include” examination of whether the information was used “solely” for improving the network, or whether the information was used or maintained in a manner that does not facilitate infringement.

Some, including the security firms, criticize these inquiries as too narrow. The two factors in section 1201(j), however, are non-exclusive: the phrase “shall include” in section (j)(3) is generally not a phrase of limitation. Ambiguity, to the extent it exists, is resolved by the conference report: “Section 1201(j)(3) provides a *non-exclusive* list of factors that a court shall consider in determining whether a person benefits from this exception.”⁴ Congress provided a means by which courts can and should consider things like industry custom (such as the existing partnerships between software and security firms), changes in technology, and usage of trade in determining the bounds of good faith. On top of that, the rulemaking proceeding allows expansion of the scope of their exemption from the anti-circumvention provision in section 1201(a)(1).

Next, some claim that the “facilitation” language in the statute could be interpreted to chill the disclosure of research. This seems unlikely, as significant First Amendment checks exist. Source code

³ 17 U.S.C. 1201(j)(3)(A) (requiring inquiry into whether the information derived from the security testing was done solely for specified purposes or shared with the owner of the network); *id.* 1201(j)(3)(B) (requiring inquiry into whether the information was used to facilitate infringement, and how it was maintained).

⁴ Conference Report at 67 (emphasis supplied).

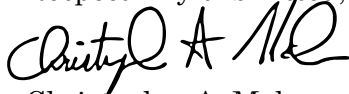
receives First Amendment protection.⁵ Moreover, absent an intent to facilitate infringement, it seems extremely unlikely that most discussions of network security will result in legal liability.⁶

The criticisms of the provision discuss neither of these points, and in doing so present an incomplete picture of the context in which the exemption operates. Nor do they cite a case in which the exemption has failed to protect a good-faith researcher. We do think, however, it might be constructive for the Office to suggest that courts can and should consider industry custom and trade usage such as NIST's indices, as additional factors that, in the presence of other evidence, could show good faith when applying the exemption under section 1201(j)(3).

Finally, we note that for some groups, the issue is not as much copyright as it is the function that the DMCA serves in tandem with the Computer Fraud and Abuse Act, 18 U.S.C. 1030. As evinced by the fact that Congress mentioned it expressly, Congress intended the DMCA and section 1030 to work together. We agree with that choice.

Thank you for the opportunity to submit our views.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Christopher A. Mohr", written over the typed name.

Christopher A. Mohr

Vice President for Intellectual Property
and General Counsel

⁵ See, e.g., *Bartnicki v. Vopper*, 532 U.S. 514, 527 (2001) (“[i]f the acts of ‘disclosing’ and ‘publishing’ information do not constitute speech, it is hard to imagine what does fall within that category, as distinct from the category of expressive conduct.”) (internal citation omitted); *Universal City Studios, Inc. v. Corley*, 273 F.3d 429, 448 (2d Cir. 2001) (“Instructions that communicate information comprehensible to a human qualify as speech whether the instructions are designed for execution by a computer or a human (or both).”);

⁶ Compare *Rice v. Paladin Enterprises, Inc.*, 128 F.3d 233 (4th Cir. 1997) (finding culpable intent only in the presence of stipulation that assassin manual was intended as a guide to commit and conceal murder and for no other purpose).